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Case Number: 24PSCV03167 Hearing Date: July 17, 2026 Dept: H

Sukarieh v. City
of Glendora, Case
No. 24PSCV03167

ORDER ON MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

Plaintiff Dana Joseph Sukarieh's
Motion for Determination of Good Faith Settlement is GRANTED.

Background

Plaintiff Dana Joseph Sukarieh ("Plaintiff") alleges that on February 24, 2024 she sustained injuries after colliding her vehicle, which had been traveling eastbound on W. Gladstone St. towards the intersection of W. Gladstone St. and S. Nearglen Ave., with an unmarked curb extension.

On February 13, 2026, Plaintiff filed two "Amendment[s] to Complaint," wherein Alfaro Communications Construction Inc. ("Alfaro") was named in lieu of Doe 1 and JMDiaz, Inc. ("JMDiaz") was named in lieu of Doe 2.

On February 18, 2026, Plaintiff filed another "Amendment to Complaint," wherein Ivan Salvatierra ("Salvatierra") was named in lieu of Doe 3.

On February 23, 2026, Plaintiff filed a First Amended Complaint ("FAC"), asserting

causes of action against City of Glendora ("City"), JMDiaz, Alfaro, Salvatierra and Does 4-20 for: (1) Inverse Condemnation, (2) Dangerous Condition of Public Property, (3) Failure to Discharge Duty Imposed by Mandatory Enactment, (4) Public Nuisance, (5) Professional Negligence, (6) Negligence, and (7) Negligence Per Se.

A Case

Management Conference is set for August 19, 2026.

Legal

Standard

"Any

party to an action in which it is alleged that two or more parties are joint tortfeasors or co-obligors on a contract debt shall be entitled to a hearing on the issue of the good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors or co-obligators, upon giving notice in the manner provided in subdivision (b) of Section 1005 . . ." (Code Civ. Proc., § 877.6, subd. (a)(1).)

"A

determination by the court that the settlement was made in good faith shall bar any other joint tortfeasor or co-obligor from any further claims against the settling tortfeasor or co-obligor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault." (Code Civ. Proc., § 877.6, subd. (c).)

"[T]he

intent and policies underlying section 877.6 require that a number of factors be taken into account including a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among plaintiffs, and a recognition that a settlor should pay less in settlement than he would if he were found liable after a trial.

Other

relevant considerations include the financial conditions and insurance policy limits of settling defendants, as well as the existence of collusion, fraud, or tortious conduct aimed to injure the interests of nonsettling defendants. Finally, practical considerations obviously require that the evaluation be made

on the basis of information available at the time of settlement.” (Tech-Bilt, Inc. v. Woodward-Clyde & Associates (1985) 38 Cal.3d 488, 499 [emphasis added].)

Additionally, “the trial court’s good faith determination must take into account the settling tortfeasor’s potential liability for indemnity to a cotortfeasor, as well as the settling tortfeasor’s potential liability to the plaintiff.” (Far West Financial Corp. v. D&S Co. (1988) 46 Cal.3d 796, 816, fn. 16.) “If section 877.6 is to serve the ends of justice, it must prevent a party from purchasing protection from its indemnification obligation at bargain-basement prices.” (Long Beach Memorial Medical Center v. Superior Court (2009) 172 Cal.App.4th 865, 876.)

The moving party’s initial evidentiary burden depends on whether the good faith of the settlement is being contested. If the nonsettling defendants do not oppose the motion on the good faith issue, a “barebones” motion which sets forth the grounds of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient. (City of Grand Terrace v. Superior Court (1987) 192 Cal.App.3d 1251, 1261.)

When a motion for determination of good faith settlement is contested, however, the moving party must make a more specific showing under the Tech-Bilt factors. (Id. at 1261-62.) Such a showing may be made either in the original moving papers or in counter-declarations filed after the nonsettling defendants have filed an opposition challenging good faith of the settlement. (Id. at 1262.) Where good faith is contested, the showing requires competent evidence in support of “good faith.” (Greshko v. County of Los Angeles (1987) 194 Cal.App.3d 822, 834.)

“Once there is a showing made by the settlor of the settlement, the burden of proof on the issue of good faith shifts to the non-settlor who asserts that the settlement was not made in good faith.” (City of Grand Terrace, supra, 192 Cal.App.3d at 1262; Code Civ. Proc., § 877.6, subd. (d).)

Discussion

Plaintiff

moves the Court, pursuant to Code of Civil

Procedure sections 877 and 877.6, for an order determining that her settlement reached with City was entered into in good faith and barring any present or future claims against the City for equitable comparative contribution, partial or comparative indemnity, or implied non-contractual indemnity by any co-defendant, joint tortfeasor, or other person or entity arising out of the subject incident, and dismissing any such claims with prejudice.

As an

initial matter, this instant motion was originally set for hearing on June 24, 2026; the day before, the Court reset the hearing date to July 17, 2026, on the following basis:

“The

Court observes that the opposition was not filed until June 18, 2026, despite it being due by June 10, 2026. Moreover, a proof of service was not filed until June 18, 2026, despite one being due by June 16, 2026; as such, when the Court initially reviewed the motion, it believed the motion would be taken off calendar due to the lack of a proof of service.

Under

the circumstances, the Court will continue the hearing to July 17, 2026, at 9:30 a.m. so that it is able to fully review the belatedly filed opposition and the reply brief . . .”

Notice

of the continuance was provided by the clerk.

Next,

the Court addresses Alfaro’s claim, raised in its opposition, that Plaintiff never served it with the motion. The Court’s June 23, 2026 minute order references that Plaintiff filed a proof of service on June 18, 2026. This proof of service reflects that Alfaro was electronically served with the motion on May 29, 2026. Additionally, Bachour has attached a copy of the Green Filing electronic service records for the May 29, 2026 as Exhibit A to his reply declaration. Regardless, Alfaro has filed a substantive opposition, which the Court is considering. “[T]he appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion. This rule applies even

when no notice was given at all.” (Tate v. Superior Court (1975) 45 Cal.App.3d 925, 930 [internal citations omitted].) Accordingly, the Court will proceed to address the merits of the motion at this juncture, as follows.

Plaintiff

and City have agreed to resolve Plaintiff’s claims for \$150,000.00 (i.e., \$40,000.00 economic/\$110,000.00 non-economic), in exchange for a release and dismissal with prejudice as to City. (Bachour Decl., ¶ 20, Exh. A).

Plaintiff’s counsel Rami Bachour

(“Bachour”) represents, and/or the accompanying exhibits reflect, as follows:

This

action arises from a roadway improvement project (“Project”) commissioned by City at the intersection of W. Gladstone Street and S. Nearglen Avenue (“Intersection”). (Bachour Decl., ¶ 3.) City began the project in late 2023. (Id.) City retained JMDiaz as its engineering consultant for Project. (Id., ¶ 4). Salvatierra, a licensed civil engineer employed by JMDiaz, prepared and signed the design plans for Project, including the taper calculations governing the lane narrowing at issue in this action. (Id.) Alfaro was the construction contractor for Project and contractually responsible for designing and implementing the temporary traffic control plan during construction, including the signage, barricades, delineators, and warning measures intended to protect motorists until the permanent roadway features were complete. (Id., ¶ 5.) City, as owner of the roadway, held final approval over the design and authorized construction. (Id., ¶ 3.)

On

February 24, 2024, Plaintiff was driving eastbound on W. Gladstone Street while Project was still under construction. (Id., ¶ 6.) W. Gladstone Street had a posted speed limit of 45 miles per hour. (Id.) As Plaintiff approached Intersection, her travel lane abruptly narrowed from approximately fourteen feet to less than seven and one-half feet because of a newly constructed curb extension, which had not been painted, marked or signed. (Id.) Plaintiff struck the curb extension after being unable to merge into the adjacent lane because of another vehicle and her vehicle was declared a total loss. (Id.)

Plaintiff’s

past medical specials and out-of-pocket special damages exceed \$100,000.00. (Id.,

¶ 9.) Plaintiff sustained the following injuries/damages as a result of the incident: (a) thyroid storm requiring multiple surgical interventions; (b) a vocal cord injury sustained when her vocal cord was nicked during a thyroid surgery, which has required corrective vocal cord filler injections and additional vocal cord surgery; (c) cervical disc protrusions at C3-C4, C5-C6, and C6-C7; (d) lumbar disc protrusions at L4-L5 and L5-S1, with the L5-S1 protrusion measuring 5.7 mm and presenting an associated annular fissure, mild left neural foraminal narrowing, and abutment on the left transiting nerve root, treated with epidural injections; and (e) property damage to her vehicle. (Id., ¶ 8.) Plaintiff's future medical needs, which include lifelong thyroid hormone replacement therapy, continuing vocal cord treatment (including additional surgery and filler injections), continued epidural injections, and long-term pain management for her cervical and lumbar disc injuries are projected to be approximately \$200,000.00 or more. (Id., ¶ 9.)

Bachour

conducted the depositions of City's Persons Most Knowledgeable ("PMK") concerning project management, design, approval, and construction, including Maliha Ansari ("Ansari"), City's Principal Engineer, and Steven Mateer ("Mateer"), City's Transportation Manager. (Id., ¶ 10.) Salvatierra was also deposed over two sessions. (Id.) Salvatierra testified that the seventy-five-foot taper was calculated using a formula intended for temporary traffic control zones rather than for permanent roadway features. (Id., ¶¶ 10 and 11, Exh. B, 168:6-11.) Applying the formula from the CA MUTCD applicable to permanent approach markings, Salvatierra testified that the taper for the subject roadway should have been 270 feet. (Id., ¶¶ 10 and 11, Exh. B, 39:13-21.) Salvatierra testified that the contractor is responsible for the traffic control during construction and identified that contractor as Alfaro. (Id., ¶¶ 10 and 11, Exh. B, 30:18-31:6.) Mateer also testified that the contractor prepares the traffic control plan and implements it. (Id., ¶¶ 10 and 12, Exh. D, 87:13-88:7.) Ansari testified that she signed the plans and specifications for the Project, and confirmed that she approved the plans by electronic signature. (Id., ¶¶ 10 and 13, Exh. C, 109:20-110:2.) Ansari testified that City does not independently verify taper-length calculations, explaining that the City has no city standard for taper length and instead relies on the Caltrans manual and on consultant expertise. (Id., ¶¶ 10 and 13, Exh. C, 53:11-24.) Mateer explained that the curb extension and refuge island were selected because they were "the low hanging fruit" that "could [be] implement[ed] quickly to improve safety." (Id., ¶¶ 10 and 12, Exh. D, 29:5-14.) He testified that City hires an engineering firm to

design the improvement so that it “provides correct lane width” and “correct notification to drivers of any change” (Id., ¶¶ 10 and 12, Exh. D, 79:20-81:4.) Salvatierra confirmed that, as far as he could recollect, there was no instance where City directed JMDiaz to design anything that violated a standard. (Id., ¶¶ 10 and 11, Exh. B, 60:8-12.)

Bachour

has provided the Court with copies of City's written contracts with JMDiaz and Alfaro and represents that there is no agreement under which City indemnifies JMDiaz, Salvatierra, or Alfaro. (Id., ¶ 22, Exhs. E and F.) Bachour has reviewed Plaintiff's cell phone records for the date and approximate time of the collision and represents that they reflect that no calls or texts were placed or received in the period immediately surrounding the time of the incident. (Id., ¶ 23.) He represents that Plaintiff testified that she was traveling at or below the posted speed limit at the time of the accident. (Id.)

Bachour

confirms that the settlement was reached following arms-length negotiations. (Id., ¶ 20.) City's counsel represented to him that City is insured through the Independent Cities Risk Management Authority (“ICRMA”), which provides general liability coverage and excess coverage with reinsurance, subject to a self-insured retention of \$250,000.00. (Id.)

The

Court determines that Plaintiff has made an adequate showing of the settlement [FN]; as such, the burden of proof on the issue of lack of good faith shifted to Alfaro. Alfaro, in turn, has failed to provide the Court with any declarations, expert opinion, competing fault allocation, damages analysis, and/or evidence of collusion.

Alfaro

complains that it became a party to this action in February 2026, after City “had completed the discovery on which this motion now relies” (Opp., 2:2-3) and that it “has had no meaningful opportunity to participate in that discovery, evaluate the City's proportional liability, or test the assumptions underlying the settlement” (Opp., 2:3-5). Bachour, however, represents that on May 28, 2026 (weeks before Alfaro filed its June 18, 2026 opposition) his office served Alfaro's counsel (along with all other counsel of record) with Plaintiff's discovery responses in this action, including her responses to JMDiaz's Requests for Admissions, Form and Special Interrogatories, and Requests for

Production of Documents, Sets No. One, and provided counsel access to a shared electronic folder containing Plaintiff's document productions and the materials exchanged in this action, totaling approximately 873 megabytes. (Bachour Reply Decl., ¶¶ 7 and 8, Exhs. C and D.)

Alfaro

requests that if the Court is not inclined to deny the motion, that it continue the hearing for 90 days to permit supplemental briefing "once it has been properly served and afforded a meaningful opportunity to take discovery." (Opp., 2:10-12.) The Court denies Alfaro's request for a continuance. Again, Alfaro appears to have been properly served with the motion. Next, Alfaro has not propounded any interrogatory, request for production, or request for admission on Plaintiff or on City, and has not noticed any deposition in this action as of the reply filing date. (Bachour Reply Decl., ¶ 10.) At any rate, the discovery sought by Alfaro would not change the analysis, inasmuch as a good faith determination requires a "rough approximation" of plaintiff's total recovery and City's proportionate share on the basis of information available at the time of settlement. (Tech-Bilt, supra, 38 Cal.3d at 499.)

The

motion is granted.

[FN] Alfaro makes much of the fact

that this instant motion was brought by Plaintiff, rather than by City. Alfaro's position that Plaintiff somehow lacks standing is belied by the language of section 877.6, which expressly permits "[a]ny party" to file a motion for good faith settlement determination.